For interrogatories and requests for production, sections 2030.290(c) and 2031.300(c) provide that "the court shall impose a monetary sanction … against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response … unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Sanctions are mandatory for requests for admissions. (Civ. Proc. Code, § 2033.280(c).)

Here, Plaintiff provides no explanation for the delay in providing some responses. Defendant requests $2,510 per motion ($410 x 6 hours + $50 expenses). As the motions are identical, the court awards $410 per motion (1 hour x $410).

The motion is granted as to special interrogatories and requests for production. Motion is moot as to form interrogatories and requests for admissions. Plaintiff is sanctioned a lesser amount of $410 per motion (x4).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2603479	LAURENCE-HOVENIER, INC. VS SUPPLY PATRIOT, INC.	HEARING ON RIGHT TO ATTACH ORDER AND FOR ISSUANCE OF WRIT OF ATTACHMENT

Tentative Ruling:

An attachment is a provisional remedy to aid in the collection of money by seizure of property in advance of trial and judgment. (*Kemp Bros. Const., Inc. v. Titan Elec. Corp.* (2007) 146 Cal.App.4th 1474, 1476.) It creates a judicial lien on the debtor's attachable property and protects the plaintiff's priority. (Ahart, *California Practice Guide: Enforcing Judgments and Debts* § 4:3 (Rutter Group 2026).)

An attachment may be issued only if the claim sued upon meets the following requirements: (1) a "claim for money ... based upon a contract, express or implied"; (2) of a "fixed or readily ascertainable amount not less than $500"; (3) that is either unsecured or secured by personal property; and (4) that is a commercial claim. (Code Civ. Proc., § 483.010; *Goldstein v. Barak Const*. (2008) 164 Cal.App.4th 845, 852.) To obtain a right to attach order, the plaintiff has the burden of proving (1) that the claim is one on which an attachment may be issued pursuant to Code of Civil Procedure section 483.010; (2) the probable validity of such claim; and (3) that the attachment is not sought for any purpose other than to secure recovery on the claim. (Code. Civ. Proc., § 484.090.) "Probable validity" is established when "it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim. (*Id.* at § 481.190.) "The legality of the attachment must be determined from the pleadings, proceedings and entire record in the attachment suit to ascertain therefrom what, in fact, the real grievance is for which relief is sought." (*Stowe v. Matson* (1949) 94 Cal.App.2d 678, 682.) A plaintiff must establish a prima facie case. (*Pech v. Morgan* (2021) 61 Cal.App.5th 841, 854.) When opposed, the court must "consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation." (*Id*. at 855.)

Plaintiff has demonstrated that the claim is based on contract, is a fixed amount, and that is unsecured. (Hovenier Decl. ¶2, 7, 8.) The parties dispute whether it is a commercial claim. But Defendant acknowledges the purpose of the loan was to pay the corporate credit card. (Kenneth Mulvey Decl. ¶4-5.)

Plaintiff has also demonstrated a probability of prevailing. It is undisputed that there is a note and that Defendant has defaulted on the note. Defendant asserts that the answer raises affirmative defenses, but he provides no analysis of those defenses. The central argument Defendant raises is that Cross-Defendant Danielle Mulvey absconded with the funds. However, that does not demonstrate that the loan was for an improper purpose or that the loan was invalid. Defendant admits the funds were deposited first, and then Mulvey stole the funds. (Kenneth Mulvey Decl., ¶5.) At no time does Defendant assert that Mulvey did not have authorization to bind Defendant into the loan. Defendant does not demonstrate that the loan was invalid.

The application is granted. The court orders a $10,000 undertaking. (See Code Civ. Proc. §489.220.)